Legal Risk Brief

The Risk Ledger

1. **Unauthorized Access**: Accessing systems or networks without clear permission is illegal, even for scanning or testing.
2. **Exceeding Authorized Access**: Going beyond the agreed scope such as accessing unrelated systems or data violates both federal and state law.
3. **System Damage**: Causing disruptions, crashes, or data modification may qualify as damage under the Computer Fraud and Abuse Act (CFAA), 18 U.S.C. 1030, even if unintended.
4. **Credential Misuse**: Improper handling of usernames, passwords, or access tokens can constitute a separate offense.
5. **Interception of Communications**: Capturing network traffic or sensitive data without authorization may violate cybercrime and privacy laws.

State vs. Federal Distinction

The Computer Fraud and Abuse Act (CFAA) generally focuses on bypassing technical barriers when defining "unauthorized access," while RCW 9A.90 (Washington State Cybercrime) applies more broadly to any access that exceeds permission, even without technical circumvention. As a result, actions that may be unclear under federal law can still create liability under Washington law.

Liability Mitigation: Indemnification

Indemnification is a contractual safeguard in which the client agrees to assume responsibility for damages resulting from authorized testing. This can protect a tester if a system is unintentionally disrupted, provided all actions remain within scope. However, it does not cover criminal conduct or negligence.

Best Practices: Written authorization, defined scope, Rules of Engagement, and thorough documentation.